



U.S. Department
of Transportation

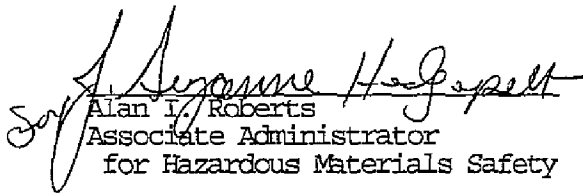
Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8645 (EXTENSION)
ORIGINAL October 19, 1981

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8645 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to April 30, 1998. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

JUN , 6 1996

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Mining Services International, Inc. (MSI)
Salt Lake City, UT

March 27, 1996



U.S. Department
of Transportation

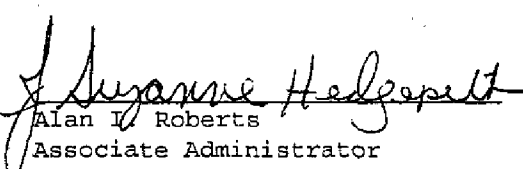
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DOT-E 8645 (EXTENSION)
ORIGINAL October 19, 1981

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 8645 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to June 30, 1996. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.


Alan L. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 31 1994

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

Austin Powder Company
Cleveland, OH

June 13, 1994

ADVISORY

IF YOU ARE A HOLDER OF AN EXEMPTION THAT AUTHORIZES THE USE OF A PACKAGING WITH A MAXIMUM CAPACITY LESS THAN 450 L (119 GALLONS) OR A MAXIMUM NET MASS LESS THAN 400 KG (882 POUNDS), PLEASE BE ADVISED THAT YOUR EXEMPTION MAY NOT BE RENEWED BEYOND SEPTEMBER 30, 1996. IN ADDITION, NO NEW CONSTRUCTION OF PACKAGINGS WHICH FALL WITHIN THE NON-BULK CAPACITIES LISTED ABOVE ARE AUTHORIZED AFTER SEPTEMBER 30, 1994. THIS IS CONSISTENT WITH THE IMPLEMENTATION OF THE NEW PACKAGING REQUIREMENTS ADOPTED UNDER DOCKET HM-181. ANY APPLICATION SUBMITTED TO THIS OFFICE TO RENEW AN EXEMPTION BEYOND THE SEPTEMBER 30, 1996 DATE WILL BE DENIED UNLESS THE APPLICATION CONTAINS SUPPORTING INFORMATION TO JUSTIFY THE CONTINUATION OF THE EXEMPTION.



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 8645

1. Mining Services International, Salt Lake City, Utah is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a viscous oxidizing material for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes bulk shipment of a thickened solution of an oxidizing material, commercially designated and described in the application as "HEF", in DOT specification MC 307 or MC 311 insulated cargo tanks at ambient temperature and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of a party to this exemption:

Austin Powder Company, Cleveland, Ohio - PTE-1.

2. BASIS. This exemption is based on Mining Services International's application dated April 16, 1981, and supplementary information dated May 11, 1981, and July 9, 1981, submitted in accordance with 49 CFR 107.103 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

Austin Powder Company's application dated April 22, 1981.

3. HAZARDOUS MATERIALS (Descriptor and class). A thickened solution of an oxidizing material having the formulation specified on page 2 of the Request for exemption and commercially designated as "HEF", classed as Oxidizer.

4. PROPER SHIPPING NAME (49 CFR 172.101). Oxidizer, n.o.s.

5. REGULATION AFFECTED. 49 CFR 173.154(a)(18).

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is a DOT Specification MC 307 or MC 311 insulated cargo tank.

8. SPECIAL PROVISIONS.

a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.

b. Drivers must have been instructed as to necessary safeguards and proper procedure in the event of unusual delay, fire, or accident.

c. Each cargo tank must be reinspected and retested in accordance with 49 CFR 173.33 as prescribed for DOT Specification MC 307 and MC 311 cargo tanks, respectively. Pneumatic retesting at one and one-half times the design pressure is authorized in place of the required hydrostatic test.

d. Each cargo tank must be plainly marked on the right side near the front, in letters at least two inches high on a contrasting background, "DOT-E 8645."

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. May 31, 1983.

Issued at Washington, D.C.



Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

OCT 19 1981

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA.